

25STLC03898 25STLC03898

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STLC03898 Hearing Date: August 21, 2026 Dept: 833

Livingston Builders Case No. 25STLC03898

Hearing: August 21,
2026

v. Location:

Stanley Mosk Courthouse

Department:

833

Javier Rodriguez Judge: Joseph

Lipner

[Tentative] Order on

Application for Writ of Attachment

INTRODUCTION

Plaintiff Livingston Builders ("Plaintiff") moves for writ of attachment against Defendant Javier Rodriguez ("Defendant") in the amount of \$34,956.42.

The

Court DENIES the writ of attachment.

LEGAL STANDARD

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right

to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (Code Civ. Pro. § 484.010.) “Except as otherwise provided by statute, an attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney’s fees.” (Code Civ. Pro. § 483.010.)

The court shall issue a right to attach order if the court finds all of the following:

(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.

(Code Civ. Pro. § 484.090.)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Pro. § 481.190.) “The application shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (Code Civ. Pro. § 484.030.) “In contested applications, the court must consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” (Hobbs v. Weiss (1999) 73 Cal.App.4th 76, 80.) “The Attachment Law statutes are subject to strict construction.” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

DISCUSSION

A.

Probable Validity of Plaintiff's Claim

The application is based on Plaintiff's cause of action for breach of contract.

Plaintiff is a construction consulting company based in Los Angeles County, California. (Livingston Decl., ¶ 2.)

In or around 2021, Defendant contacted Plaintiff after discovering significant construction defects associated with renovation work that had been performed at Defendant's property in Ranchos Palos Verdes, California. (Livingston Decl., ¶ 5.) Defendant retained Plaintiff in anticipation of litigation and dispute resolution proceedings arising from these defects. (Ibid.) The contract between Defendant and Plaintiff is found in Exhibit A to the Livingston declaration.

Pursuant to the Agreement between Plaintiff and Defendant, Plaintiff agreed to provide consulting and expert witness services, including investigation, inspection, analysis, reporting, expert consultation, arbitration support, and participation in mediation, arbitration, and/or trial proceedings as needed. (Livingston Decl., ¶ 7.)

Plaintiff would bill Defendant on a monthly basis for services rendered and invoices would be deemed accepted unless disputed in writing within 10 days. (Livingston Decl., ¶ 8.) The Agreement further provided that unpaid balances would accrue a service charge of 1.5% per month, including on prior service charges. (Livingston Decl., ¶ 8.)

The Agreement further provided that, in the event litigation arises from or relates to the Agreement or the performance thereof, the prevailing party is entitled to recover its reasonable attorneys' fees, court costs, and litigation expenses. (Livingston Decl., ¶ 9.)

Plaintiff performed substantial professional consulting and expert witness services on Defendant's behalf over the course of more than a year. (Livingston Decl., ¶

10.) Plaintiff also provided substantial litigation support and arbitration related services in connection with Defendant's anticipated arbitration proceedings concerning the defective construction work performed at the Subject Property. (Livingston Decl., ¶ 12.)

Defendant obtained an arbitration award and subsequent judgment totaling \$794,925. (Livingston Decl., ¶ 15.)

Defendant made some payment to cover Plaintiff's invoices, but eventually stopped paying. (Livingston Decl., ¶ 19.) Defendant did not dispute Plaintiff's invoices in writing within the time required under the Agreement. (Livingston Decl., ¶ 20.) Defendant presently owes Plaintiff \$26,896.42, which is a number ascertained by looking at Plaintiff's business records. (Livingston Decl., ¶¶ 20-24.)

Defendant, however, claims he did not receive any activity logs that the Agreement requires him to receive; instead, Defendant just received monthly invoices far above the initial estimate provided by Plaintiff. (Rodriguez Decl., ¶ 9.)

The Court concludes that there appears to be a dispute in whether Defendant really agreed to incur specific expenses. Based on the record, the Court cannot say that Defendant breached a contract for a specific amount of money.

Therefore, it is not fully clear whether Plaintiff is likely to prevail on the breach of contract claim.

B.

Basis for Attachment

"[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (Code Civ. Pro. § 483.010, subd. (a).) "An attachment may not be issued on a claim which is secured by any interest in real property arising from agreement"

(Code

Civ. Pro. § 483.010, subd. (b).) “[A]n attachment will lie upon a cause of action for damages for a breach of contract where the damages are readily ascertainable by reference to the contract and the basis of the computation of damages appears to be reasonable and definite.” (CIT Group/Equipment Financing, Inc. v. Super DVD, Inc. (2004) 115 Cal.App. 4th 537, 541.)

Here, Plaintiff’s

application for writ of attachment is based on a contract entered into with Defendant. There is no evidence that the claim is secured by an interest in real property. The total amount subject to attachment is readily ascertained by a review of Plaintiff’s business records.

C.

Purpose and Amount of Attachment

Code of Civil

Procedure section 484.090 states that the Court shall issue a right to attach order if “the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based . . . [and] the amount to be secured by the attachment is greater than zero.” Plaintiff satisfied these requirements. (See Application ¶ 4.)

D.

Reduction of Amount to be Secured

Code of Civil

Procedure section 483.015, subd. (b) provides that the amount to be secured by the attachment shall be reduced by, inter alia: “(2) The amount of any indebtedness of the plaintiff that the defendant has claimed in a cross-complaint filed in the action if the defendant’s claim is one upon which an attachment could be issued.” Defendant has the initial burden of proof to satisfy the requirements of attachment for any offset claim. (See Code Civ. Pro. § 483.015 and Lydig Construction, Inc. v. Martinez Steel Corp. (2015) 234 Cal.App.4th 937, 945.) Among other requirements, “the contract sued on must furnish a standard by which the amount due may be clearly ascertained and there must exist a basis upon which the damages can be determined by proof.” (See CIT Group/Equipment Financing, Inc., supra, 115 Cal.App.4th at 541.)

E.

Exemptions

Defendant did not seek exemptions.

F.

Undertaking

Code of Civil

Procedure section 489.210 requires the plaintiff to file an undertaking before issuance of a writ of attachment. Code of Civil Procedure section 489.220 provides, with exceptions, for an undertaking in the amount of \$10,000. Plaintiff has not yet filed an undertaking at the time of the application, but must do so.

G.

Subject Property

Plaintiff requests attachment of any property Defendant. (Application ¶ 9c.) That request is proper.

Code of Civil Procedure section

483.010, subd. (c) limits attachment against natural persons to claims arising out of a trade, business, or profession of a defendant. To determine whether a claim arises from a defendant's trade, business, or profession, courts consider whether the activity is one that "occupies the time, attention and effort" of the defendant for "profit on a continuing basis." (Nakasone v. Randall (1982) 129 Cal.App.3d 757, 764.)

The underlying contractual dispute concerns Defendant's residence. The undisputed evidence establishes that Defendant is a registered nurse employed by Kaiser Permanente, with no trade, business, or profession involving construction consulting, real estate, or expert-witness services. (Rodriguez Decl., ¶¶ 2–3.) Defendant did not retain Plaintiff in the course of operating a business — he retained Plaintiff solely to evaluate defects at his own personal residence in connection with his own personal arbitration against the home's seller. (Rodriguez Decl., ¶¶ 6–8.)

Plaintiff's analysis is unconvincing. Plaintiff cites Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson (1987) 197 Cal.App.3d 1, 4 as support for granting the writ of attachment. In that case, a trust hired a

law firm to represent the trust in three separate actions involving the trust property. (Id., at p. 3.) The trustees eventually refused to pay the accruing legal fees. (Ibid.) As Plaintiff notes, the Court found that “the retention of an attorney to protect the commercial assets of a trust estate valued at \$10 million ... cannot be classified as a consumer transaction exempt from prejudgment attachment.” (Ibid.) The trust was engaged in a business of managing property, and so Code of Civil Procedure Section 483.010, subd. (c) could not bar a writ of attachment.

Those facts are not the same as the facts of the case currently before the Court. What business is Defendant engaged in? As Defendant noted, he has no trade, business, or profession involving construction consulting, real estate, or expert-witness services. (Rodriguez Decl., ¶¶ 2–3.) This dispute appears to relate to money used by a defendant primarily for personal, family, or household purposes, and Code of Civil Procedure Section 483.010, subd. (c) expressly forbids an attachment for these kinds of disputes.

Therefore, the Court cannot grant a writ of attachment.

H.

Attorneys Fees

Code

of Civil Procedure section 482.110, subd. (b) provides, “[i]n the discretion of the court, the amount to be secured by the attachment may include an estimated amount for costs and allowable attorney’s fees.”

Plaintiff

has incurred attorneys’ fees and costs in the amount of \$8,060 in connection with enforcing its rights under the Agreement and prosecuting this action. (Livingston Decl., ¶ 9, Ex. A; Gutenplan Decl., ¶¶ 4, 9-11.)

CONCLUSION

The Court DENIES the writ of attachment.

IT IS SO ORDERED.

Dated: August 21,
2026

Joseph Lipner

Superior
Court Judge